



November 5th 2013

To: Medical Employers State of Washington

From: Vancouver Chamber of Commerce and Thurston County Chamber

Re: RETRO (Retrospective Rating Program)

Enclosed are the enrollment packets for the Group Retro Program for Medical employers. You are receiving this packet as you showed interest participating in the recent feasibility study for the formation of the Group. Those results were positive, so the Chambers are moving forward.

Currently 90 medical and dental offices participated. These businesses reside in the SW Washington and Thurston County areas. This will be the main geographical area that the group will be made if.

The enclosed information is the Application for Group the Chambers Participation Agreement and a foldout explaining the key points of the program, responsibilities of each member, and the contact information for the purposes of claims management. Our administrator will be managing all claims for the group and be identified was the lay representative for all of the participating members. Please fill out the Contact Information Sheet for Claims Management and return with your other enrollment documents.

The deadline for all contracts to be submitted to the Retro Department at the State is December 15th. The program start date will be January 1st 2014, and the run-through is December 30th 2014. We are asking all for contracts to be returned no later than November 30th 2013. Please mail those directly to our administrator. Scott Croucher, Croucher Consulting Services, PO Box 5049, Vancouver WA 98668.

If you have any questions in regards to the enclosed information and agreements, please contact our administrator direct and he will be able to answer your questions. We are pleased to offer this money saving program to the Medical community and believe it will be just as successful as the Chambers other two programs

Regards,

A handwritten signature in black ink that reads 'Kelly Parker'.

Kelly Parker

President & CEO

Greater Vancouver Chamber of Commerce



APPLICATION FOR GROUP MEMBERSHIP AND AUTHORIZATION FOR RELEASE OF INSURANCE DATA

Mail to association:
Greater Vancouver Chamber of Commerce
1101 Broadway, Suite 100
Vancouver WA 98660

Employer
Radiantcare Radiation Oncology

Retro ID **10929**

UBI **602 003 291**

Account ID **028 402 02**

Application Deadline **12/15/2013**

Coverage Year Beginning **1/1/2014**

If you have more than one L&I industrial insurance account you **must** enroll all sub accounts that are of a similar business nature. You **may** elect to enroll all dissimilar businesses.

If you want to enroll **dissimilar** businesses, please check the sub account box.



If you have questions about this requirement please contact the business association listed above or L&I at (360) 902-4851.

As a member of the sponsoring organization listed above, this employer applies for enrollment in the retrospective rating group sponsored by the organization. L&I will notify the sponsoring organization of acceptance or denial of your application to participate in the group. It is the responsibility of the sponsoring organization to notify you of this acceptance or denial. As a pre-requisite of enrollment each of your industrial insurance accounts must be in good standing at the time of enrollment or you will not be allowed to participate in retrospective rating.

By signing this application, the employer named above agrees with all of the following conditions:

- L&I will automatically re-enroll the employer as a member of the group in future coverage periods provided the employer's industrial insurance account is in good standing at the time of re-enrollment. If the employer does not want to participate in future coverage periods the employer or sponsoring organization must notify L&I in writing prior to the beginning of the respective coverage period.
- The employer authorizes L&I to furnish the sponsoring organization or their designee with data and information obtained from the employer's industrial insurance account(s).
- The sponsoring organization will represent the employer in all matters applicable to retrospective rating participation and the employer's industrial insurance account(s).
- The employer agrees to comply with L&I rules, regulations and laws and is bound by the terms of the agreement between the sponsoring organization and L&I.
- The employer will cooperate with L&I claims management activities and will participate in the sponsoring organization's claims management and workplace safety initiatives.
- All retrospective rating adjustments that may be earned by the employer will be given to the sponsoring organization. L&I is not involved in the distribution of a group refund to the individual group members except in the case of defunct group.

These conditions are in effect immediately and will remain in effect through the term of any agreement between the sponsoring organization and L&I.

NOTE: L&I disclaims any interest in any other contract you may enter into with the sponsoring organization as their pre-requisite of your participation in the retrospective rating group that they sponsor, and L&I neither approves or disapproves of any language or provision contained in these other contracts.

RETURN this application directly to the above organization.

DO NOT send this application directly to L&I.

Signature of an owner, partner or corporate officer of the employer named above is required to participate in this retrospective rating group.

Type or print name <i>Lani Fullerton</i>	Title <i>Director Strategic + Financial Planning</i>
Date <i>12/1/13</i>	Signature <i>[Signature]</i>
Owner, partner, corporate officer <i>Corporate Officer</i>	

Index: APM

Retrospective Rating Program

Medical Group

Contact Information Sheet For Claims Management

Name Lani Fullerton

Title Director Department _____

Phone Number (360) 412-8960

Email address Lani@radiantcare.com

Please return this sheet with the administrative contracts. Scott Croucher the program administrator will need this for contacting the appropriate person in charge of overseeing employee claims.

Scott Croucher CCS LLC. 360-750-7822 Scott@CroucherConsulting.com

**GROUP ENROLLMENT APPLICATION
AND PARTICIPATION AGREEMENT
FOR THE**

Greater Vancouver Chamber of Commerce
Retrospective Rating Program
Healthcare Group ID 10929

2014 PLAN YEAR

As a business in the State of Washington, RadiantCare Radiation Oncology
Department of Labor & Industries Workers' Compensation Account Number 028402-02
("Employer") applies for enrollment as a participating employer in the Greater Vancouver Chamber of Commerce
("Association") Workers' Compensation Plan for the Healthcare ("Plan") for coverage for the plan year January 1,
2014 through December 31, 2014 ("Plan Year").

Note: Retroactive premium adjustment calculations for the Plan Year may be made by the Department subsequent to the end of the Plan Year and result in later distributions and collections as set forth herein.

1. **The Plan:** Employer understands and agrees that the Plan is a Group Retrospective Rating Plan entered into by the Association through an agreement with the State of Washington Department of Labor & Industries ("Department"). **The plan selected for the coverage period beginning January 1, 2014 and ending December 31, 2014 is Premium Based (Washington Administrative Code - WAC § 296-17-91902) with a maximum loss ratio.7260 and a single loss limit of \$250,000.**
2. **Objective of the Plan:** Employer understands that the primary objectives of the Plan are:
 - a. To develop a retrospective return of the part of the Accident Fund and Medical Aid Fund premiums paid by Plan participants;
 - b. To establish a professional claims management and review system with Plan participants;
 - c. To assist in reducing Plan participants' experience modification factors in subsequent years; and
 - d. To assist Plan participants in reducing the frequency and severity of industrial injuries.
3. **Plan Administration:** The Association may contract out administration of the Plan (the "Administrator"). If so, the Association will act as an agent in collecting fees on behalf of the contracted administrator.
4. **Termination:** Any Employer who is expelled for nonpayment of fees or otherwise violating this Agreement shall from and after the date of termination, expulsion or loss of good standing status be deemed to have automatically, totally and irreversibly forfeited any and all rights to any funds held by the Association. Any dividend/premium return held invested or accrued by the Association pursuant to the discretion granted the Association and any interest or profit associated therewith shall not be subject to any claim by the defaulting member or any creditor or assignee thereof. Any forfeited sums shall be distributed or held for the benefit of the participating employers, according to the discretion of the Association.
5. **Distribution or Premium Return:** Although a primary objective of the Plan is to develop a retrospective return of part of the Accident Fund and Medical Aid Fund premiums paid by the Plan participants, Employer recognizes and acknowledges that such returns are based on premium size, claims costs and other related factors and therefore are not guaranteed. Employer hereby authorizes the Department to pay all retrospective premium dividends/returns earned under the Plan to the Association. All actions and decisions by the Association with regard to the disposition of the dividend/premium returns, including establishing of reserves, investing, distributions or payments to participating Employers and expenditures for administrative purposes shall be within the sole discretion of the Association.

Employer recognizes that the Department calculates retrospective premiums by at least three (3) annual adjustments for each Plan Year, with the first adjustment for the Plan Year scheduled for October 2015. Employer also recognizes that prior to a Plan Year's final adjustment, the Department has the right to require the return of previously given refunds to cover increased claims costs for the Plan Year. In such event, Plan participants may be required to return their portion of a previously given refund if the reserves being held for that Plan year are insufficient to cover the amount being requested by the Department. The Association will, before any distributions, establish and accumulate such reserves as the Association, in their discretion, deem necessary or desirable for the proper execution of the Plan. Plan participants will solely be responsible for any legal or financial fees incurred by the program. The Association is dissolved of any responsibility in these matters. Employer and the Association agree that the timing and amount of the distributions of all or any part of the amounts being held by the Association will be within the discretion of the Association, and such distributions will be based upon the following criteria:

- a. Premium returns will be distributed only to Plan participants who, at the time of the distribution, have complied with all terms of this Agreement.
- b. The timing and amount of distribution will be based upon the Association's evaluation of future retrospective adjustments for the Plan Year balanced against the objective to return as much as possible of the retrospective premium return held by the Association to the beneficiaries as early as is practical.
- c. Remaining funds approved for distribution will be determined and apportioned in accordance with a formula to be established by the Association based upon (1) each Plan participant's percentage of the group's total Accident Fund and Medical Aid premiums for the Plan year, and/or (2) each Plan participant's individual loss record for the Plan Year. The Association will determine the relative weight given to each of these factors.

Employer agrees that failure to make timely payments to the Association or to the Department may, in the Association's discretion, result in: (1) loss by Employer of any refund; (2) dismissal from the Plan; and (3) enforcement of any other remedies available to the Association at law or in equity to collect such payments.

6. **Ancillary Services to Plan Participants – Loss Control, Claims Management:** To attempt to reduce the frequency and severity of the injuries, to improve Plan participants' opportunity for premium returns and to assist in lowering the risk of adverse claims experience, Association shall:

- a. Provide Plan participants with limited safety and loss prevention assistance;

NOTE: ALTHOUGH THE ADMINISTRATOR SHALL ATTEMPT TO PROVIDE PARTICIPANTS WITH LIMITED ADVICE REGARDING SUCH ISSUES, NOTHING HEREIN SHALL BE DEEMED TO BE A WARRANTY THAT SUCH ASSISTANCE SHALL CAUSE PARTICIPANTS TO BE IN COMPLIANCE WITH APPLICABLE LAW OR INDUSTRY STANDARDS AND ASSOCIATION DISCLAIMS ANY AND ALL WARRANTIES RELATED TO THIS LIMITED ASSISTANCE, INCLUDING ANY WARRANTY OF FITNESS FOR A PARTICULAR PURPOSE.

- b. Engage, on behalf of Plan participants, or carry out professional claims management and review facilities and services.

7. **Fees:** To defray the cost of services to Plan participants, Employer agrees to pay a fee equal to six and one half (6.5) percent of Employers total quarterly Workers' Compensation premium paid to the Department to the Association. This fee will be paid on a quarterly basis and will be due on or before April 30th, 2014; July 31st 2014; October 31st, 2014; January 31, 2015. If the Employer is not currently a member of the GVCC, there will be an annual membership fee, in addition to the foregoing administration fee.

In addition to the above described (6.5) percent fee, Employer agrees to pay, when due, any penalties levied

by the Department up to the maximum premium ratio of this given plan year. If proper payment is not made, Employer agrees to pay a late payment of two (2) percent of the balance due each month and an attorney fees and other costs which must be incurred because of late payments.

8. **Other Responsibilities of Plan Participants:** Employer agrees to be bound by this Agreement, by all roles and regulations of the Department, including, but not limited to, all rules and regulations governing Group Retrospective Rating Plans in the state of Washington and by the agreement between the Association and the Department (Attachment 1 hereto). Employer further agrees to maintain an individual account with the Department in good standing and make accurate and timely payment to the Department of quarterly premiums based on Employer's assigned risk classification(s) and individual experience rating, and all premiums, penalties or other assessments arising from the coverage period; to participate in the Association's loss prevention and claims control efforts and those efforts which are commercially reasonable in its industry for businesses of its size; to abide by the Management Commitments and Criteria for Continued Participation (Attachment 2 hereto); **and to release and indemnify and hold the Association, the Administrator, and all other participating employers harmless from any and all liability from any decision which may now or hereafter be made by the Association, or Administrator with regard to the Plan, any premium returns (including interest, principal and profit), the payment or any such sums or the investment or any such sums.**
9. **Implementation of the Plan:** Employer understands that implementation of the Plan is conditioned upon acceptance by the Department and that Employer's participation in the Plan must be approved by the Department, the Association and the Administrator. This Agreement may not be assigned without the prior written consent of the Association and, in the event of any assignment of any nature, this Agreement shall be binding upon the successors and assigns of Employer. As the Department does not require an annual agreement from the enrolled employer the Association will also not require a current participant to sign an annual participant agreement each fiscal year. If the participant at the time of the groups enrollment request the association to delete them from the group, the participant must notify the association no later than the 15th of the previous month.
10. **Remedies:** In the event of any default under the terms of this Agreement, the non-defaulting party shall have all the remedies provided by this Agreement and by law or equity. All remedies shall be cumulative.
11. **Waiver:** No waiver of any right or remedy arising out of a breach of any covenant, term or condition of this Agreement or any document executed pursuant to this Agreement, nor any failure by any party to require performance by any other party of any covenant, term or condition of this Agreement or any document executed pursuant to this Agreement shall be a waiver of any right or remedy arising out of any other or subsequent breach of the same or any other covenant, term, or condition or a waiver of the covenant, term or condition itself.
12. **Future Assurances:** Each of the parties shall, upon request of the other party, execute and deliver such additional document as may be necessary or convenient for the purpose of evidencing or perfecting any rights or interests arising under this Agreement.
13. **Conflict or Laws and Venue:** This Agreement and any other instrument or writing provided for herein, or delivered as a result of this Agreement, shall be governed, enforced and construed by the laws of the State of Washington. Venue for any action brought under, or in conjunction with, this Agreement shall be in Clark County, Washington.
14. **Caption and Paragraph Headings:** Captions and Section headings used herein are for convenience only and are not part of this Agreement and shall not be used in construing it.
15. **Legality:** In the event that any provision hereof shall be determined to be illegal or unenforceable, such illegality or unenforceability shall not affect the validity or enforceability of the other provisions of this Agreement.
16. **Legal Proceedings:** In the event that any legal proceeding is commenced for the purpose of interpreting or enforcing any provision of this Agreement, the prevailing party in such proceeding shall be entitled to recover a reasonable attorney's fee in such proceeding, or any appeal thereof, in addition to the costs and

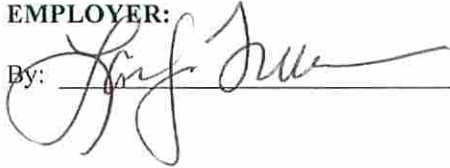
disbursements allowed by law.

Employer acknowledges that this Agreement and its supporting documents state all representations about the Plan upon which Employer has based its decision to apply and to participate, and all terms of the Agreement between Employer and the Association. Employer further acknowledges that the decision to enter into this Agreement is based upon its independent evaluation and judgment.

17. **Performance Criteria:** Members agree that overall performance and maintaining a comprehensive safety plan is critical to the success for the Group and therefore agree to the following performance standards:
- a) Any year when the loss ratios associated with the employer's performance reach 100% or more, the refund amount paid to the company will be equal to the Administration Fee that had paid for that year.
 - b) Should the employer experience the same performance level (loss ratio of 100% or more) for two sequential years, the refunds again will not exceed the Administration Fees paid for the year in question and in addition the Company will be placed on probation.
 - c) Should the employer experience the same performance level (loss ratio of 100% or more) for three sequential years, your Company may be required to leave the program. No pay out of any kind will occur during this period.

EMPLOYER:

By: _____



Date

12/2/13

ASSOCIATION:

By: _____

Date

(Attachment No.2)

**MANAGEMENT COMMITMENTS AND CRITERIA
FOR CONTINUED PARTICIPATION IN THE
GROUP WORKERS' COMPENSATION PLAN**

Inasmuch as the opportunity for retrospective premium returns and other benefits to participants in the Association Group Workers' Compensation Plan for the Manufacturing (Group Plan) will be significantly affected by the effectiveness of injury prevention and claims management efforts, it is essential that all participating employers both individually and collectively commit their effort and cooperation to reduce the risk of injury and help manage claims. As participating employers, we therefore commit to the following with the understanding that noncompliance may, at the discretion of the Association, be the basis for denying participation in the Group Plan in subsequent plan years:

- A. Eligibility for this Plan is limited to businesses within specified risk categories.
- B. To provide a place of employment free of recognizable safety and health hazards.
- C. To develop and maintain a formal accident and illness prevention program tailored to the needs of our particular store(s) or operation and to the type of hazards involved. This program will include:
 - 1. An employer safety orientation program describing the employer's safety program including:
 - a. How and when to report injuries, including instruction as to the location of first-aid facilities.
 - b. How to report unsafe conditions and practices.
 - c. The use and care of required personal protective equipment.
 - d. The proper action to take in the event of emergencies.
 - e. Identification of hazardous areas, gases, chemicals or materials.
 - f. An on-the-job review of the practices necessary to perform job assignments in a safe manner.
 - g. Monitoring of compliance with all applicable federal, state and local laws, regulations and ordinances related to safety and health, and to industrial insurance.
 - 2. A self-inspection program for hazard identification.
 - 3. Investigation of all accidents and their causes, preparing written reports and maintaining all records required by governmental regulations.
- D. At Employer's request, the Association, the Administrator, or their representatives may assist in performing safety and health inspections as often as deemed necessary considering the frequency and severity of illnesses and accidents within their firm. Employer shall be responsible for initiation and performance of such safety inspections and for follow-up on findings of such safety inspections and health inspections.
- E. To submit reports and information requested by the Administrator or Association.

- F. To cooperate fully with the Department of Labor & Industries, Administrator and/or Association staff members or their representatives, to assist the group in claims review, claims management, claims appeal and adjudication, and any other reasonable request that will reduce claims and costs.
- G. To, in good faith, attempt to return injured employees to their job, another job or a modified job as soon following injury as is legal and practical.
- H. Realizing that the success of the Group Plan depends on each member of the Group controlling its industrial accident and illness costs within acceptable limits, management agrees to abide by the Association's decision on continued participation in the Group if its losses are found to be unacceptable.

EMPLOYER:

By: 

12/2/13
Date

ASSOCIATION:

By: _____

Date